

Netherlands

Authority for Consumers and Markets

The Netherlands Authority for Consumers and Markets (ACM) is charged with competition oversight, sector-specific regulation of several sectors, and the enforcement of consumer protection laws. Data and technology-related work and development within the Dutch Authority for Consumers and Markets (ACM) is mainly centered within the Taskforce Data and Algorithms (TDA). This department focuses on the development of analytical tools and analysis to support the several goals the ACM holds as an organization. The focus of this article will be on the work the TDA does for the competition department within the ACM, as this department has a large focus on antitrust.

Mainly the TDA developed and is still improving two tools that are being used or will be used by the competition department: the *Tender-Tool* which helps identify bid-rigging behaviour, and the *Signalling Monitor* which detects price signaling in news. Besides these tools, the TDA supports frequently data analysis for merger and acquisition requests, and cartel research.

Furthermore, we are currently researching the implementation of large language models, vision models, and more generally, foundation models into our detection and case-research work.

1. Tools

The *Tender Tool* has been developed over the recent years and is maintained primarily by the TDA. The tool was designed to facilitate co-development and ease of adoption by providing the functionality in a package. The Authority for Consumers and Markets competition department is the primary internal user of the *Tender Tool*, and the main usage is to identify aberrant bidding behavior.

The *Tender Tool* is shared within the ECN and from there can be used by other European Competition Authorities. There is a keen interest in handling the problem of “bid rigging” in a more coherent and unified manner from the European Commission, which the Authority for Consumers and Markets is supporting through collaboration on the continued development of the *Tender Tool*.

The signalling monitor has recently been developed and implemented to detect signals of price changes in news articles. The signaling monitor uses the BERT Language Model, a deep learning model using complex natural language processing.

2. Data analysis toolkits

The TDA participates frequently in antitrust investigations. These analyses differ in three main directions:

- **Assisting in merger and acquisition requests:** providing analysis of geographical markets.
- **Analysing pricing behavior** to investigate price arrangements or to measure the effects of an intervention.
- **Analysis of vertical price arrangements.**

3. Data analysis frameworks

Besides these innovations, the ACM and particularly the TDA have been adopting several frameworks like privacy assessments and Impact Assessments for Algorithms (The Netherlands IAMA framework), and will keep doing so as new directives develop, for example the AI Act. These frameworks will help the department and the ACM even more to make informed and ethical decisions about the use of data and algorithms in general.